

STATE OF NEW YORK
SUPREME COURT COUNTY OF BRONX

DAVID SHULER,

Plaintiff,

-against -

THE CITY OF NEW YORK, POLICE OFFICER
LANCE WALTER (Tax ID No. 951417) and
POLICE OFFICERS JOHN DOES 1 & 2, in
their individual and official capacities as Police
Officers employed by the City of New York,

Defendants.

SUMMONS

Index No.:

Date Filed:

*Plaintiff designates Bronx
County as the Place of Trial
The Basis of Venue is the
Defendant's residence.*

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: August 11, 2017
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 105
Flushing, NY 11358
(212) 695-5811

DEFENDANTS' ADDRESS:

The City of New York	Police Officer Lance Walter
1 Centre Street	103 rd Precinct
New York, NY 10007	168-02 91 st Ave.
	Jamaica, NY 11432

STATE OF NEW YORK
SUPREME COURT COUNTY OF BRONX

DAVID SHULER,

COMPLAINT

Index No.:

Plaintiff,

-against -

THE CITY OF NEW YORK, POLICE OFFICER
LANCE WALTER (Tax ID No. 951417) and
POLICE OFFICERS JOHN DOES 1 & 2, in
their individual and official capacities as Police
Officers employed by the City of New York

Defendants.

Plaintiff, by his attorney, ANDREW F. PLASSE & ASSOCIATES, LLC, as and for his
Complaint, hereby alleges and shows to the Court the following, all upon information and belief:

1. At all times hereinafter mentioned, the Plaintiff David Shuler is an individual and resides at 1735 East Tremont Street, Bronx, NY.
2. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
3. Upon information and belief, defendants Police Officer Lance Walter and Police Officers John Does 1 & 2 are individuals residing in the State of New York. The designation John Does 1 & 2 indicate that the names of these two Defendants are currently unknown. Plaintiff intends to discover the identity of these two individuals.

4. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

5. Plaintiff hereby brings this action against the City of New York, Police Officer Lance Walter, and John Does 1 & 2 in their individual and official capacities as Police Officers employed by the City of New York for damages arising out of unconstitutional policies and actions arising out of an alleged excessive use of force incident which occurred on August 14, 2014.

6. Plaintiff brings this action against the individual defendants to redress the deprivation of rights secured to him by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution, the parallel rights of the New York State Constitution, and 42 U.S.C Section 1983. The claims against the individual defendants, Police Officer Lance Walter, and John Does 1 & 2 are brought under Federal Law, not State Law.

7. At all times hereinafter mentioned, Defendants Police Officer Lance Walter, and John Does 1 & 2 acted under color of state law or a statute, ordinance, regulation or custom.

STATEMENT OF FACTS

8. On August 14, 2014 at approximately 11:00 p.m., David Shuler was at the Anna M. Kross Center, 18-18 Hazen Street, East Elmhurst, NY 11370.

9. Police Officers Lance Walter, and John Does 1 & 2 placed the plaintiff under arrest.

10. During the course of the arrest, the plaintiff was assaulted and battered by Police Officers Lance Walter, and John Does 1 & 2 without justification.

11. Plaintiff sustained a fracture of his jaw.

12. Plaintiff was not treated while in Police Custody.

13. David Shuler sustained personal injuries as a result of the foregoing.

PLAINTIFF'S CLAIM

14. Upon information and belief, Police Officers Lance Walter, and John Does 1 & 2, acted with actual malice toward the plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

15. Upon information and belief, the actions taken as aforesaid by Police Officers Lance Walter, and John Does 1 & 2, constituted excessive use of force, and deprivation of liberty without due process of law.

16. Upon information and belief, the conduct of defendants Police Officers Lance Walter, and John Does 1 & 2 violated the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-16" AND FURTHER ALLEGES AS FOLLOWS:

17. Upon information and belief, the actions taken as aforesaid by Defendant Police Officer Police Lance Walter and Police Officers John Does 1 & 2, who arrested the Plaintiff, constituted an unreasonable search and seizure and deprivation of liberty without due process of law.

18. Upon information and belief, Police Officer Lance Walter and Police Officers John Does 1 & 2 were from the 103rd Precinct in Jamaica, NY.

19. Upon information and belief, Police Officers in the 103rd Precinct, have used excessive force against arrestees.

20. For instance, in 2006, Police Officers fired multiple rounds at Sean Bell, killing him and injuring two of his passengers.

21. For instance, upon information and belief, Dwight Edwards was arrested on January 2, 2013, and sustained a fractured eye socket. Dwight Edwards alleged he was a former marine, who was kicked in the face repeatedly by Officer Michel DeSetto at the 103rd Precinct, and then ejected without being charged with a crime or issued a summons.

22. Upon information and belief, the 103rd Precinct has a history of using excessive force upon its arrestees.

23. Upon information and belief, at all times pertinent hereto, New York City permitted and tolerated a pattern and practice of unreasonable search and seizures, stop and frisks, denial of prompt medical treatment, and deprivations of liberty without due process of law by Police Officers of the City of New York in the 103rd Precinct.

24. Upon information and belief, the City of New York has maintained a system of review of this police conduct which is so untimely and cursory as to be ineffective and which permits and tolerates the unreasonable stop and frisks, search and seizures and deprivations of liberty without due process of law by Police Officers in the 103rd Precinct.

25. At all times pertinent hereto, Defendants Police Officer Lance Walter and Police Officers John Does 1 & 2 who were involved in the arrest of David Shuler, were acting within the scope of their employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, or the affirmative link behind the conduct causing the stop of the plaintiff and the plaintiff's subsequent injuries.

26. The City of New York is therefore liable for the violations of Plaintiff's constitutional rights by Defendants Police Officer Lance Walter and Police Officers John Does 1 & 2 and other Police Officers involved in his arrest.

27. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION PURSUANT TO 42 USC 1983, AGAINST DEFENDANTS POLICE OFFICER LANCE WALTER, and POLICE OFFICERS JOHN DOES 1 & 2, JOINTLY AND SEVERALLY, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRPHS MARKED AND ENUMERATED "1-16" AND FURTHER ALLEGES AS FOLLOWS:

28. Upon information and belief, the actions taken as aforesaid by Police Officers Lance Walter, and John Does 1 & 2 constituted excessive force, in violation of the Fourth and Eighth Amendments and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

29. Upon information and belief, Police Officers Lance Walter, and John Does 1 & 2 acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

30. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

31. That by virtue of the foregoing, Plaintiffs have been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action on behalf of the Plaintiff David Shuler against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

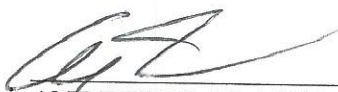
II. Judgment on the First Cause of Action on behalf of the Plaintiff David Shuler against Defendants Police Officers Lance Walter, and John Does 1 & 2 in the amount of TEN MILLION (\$10,000.00) DOLLARS;

III. Judgment for Punitive Damages against defendants Police Officers Lance Walter, and John Does 1 & 2 in the amount of TEN MILLION (\$10,000.00) DOLLARS;

IV. Together with the costs and disbursements of this action, reasonable attorney fees under the Federal Statutes and for such other and further relief as to this Court seems just and proper.

DATED: August 11, 2017
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 105
Flushing, NY 11358
(212) 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF QUEENS) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for David Shuler, the plaintiff in the within action; I have read the foregoing AMENDED COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this verification is made by me and not by David Shuler, is because he resides outside of the County of Queens, and is outside the principal location of my office which is located in Queens County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: August 11, 2017
 Flushing, New York



ANDREW F. PLASSE